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COMMON PAPER CLOUD SERVICE AGREEMENT ? STANDARD TERMS
Version 2.0

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Original: https://commonpaper.com/standards/cloud-service-agreement/2.0/
Changes: Section numbering, certain defined-term names, and selected provisions have been modified for this dataset.

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USING THIS AGREEMENT

To use these Cloud Service Agreement Standard Terms, the parties must complete and sign or electronically accept a Cover Page. Variables have the meanings or descriptions given on the Cover Page. All other capitalized words have the meanings or descriptions given in these Standard Terms.

If the Cover Page and these Standard Terms conflict, the Cover Page controls.

SECTION 1 ? SERVICE

1.1 Access and Use. During the Subscription Period and subject to the terms of this Agreement, Customer may (a) access and use the Cloud Service; and (b) copy and use the included Software and Documentation only as needed to access and use the Cloud Service, in each case, for its internal business purposes.

1.2 Support. During the Subscription Period, Provider will provide Technical Support as described in the Cover Page or Order Form.

1.3 User Accounts. Customer is responsible for all actions on Users’ accounts and for all Users’ compliance with this Agreement. Customer and Users must protect the confidentiality of their passwords and login credentials. Customer will promptly notify Provider if it suspects or knows of any fraudulent activity with its accounts, passwords, or credentials, or if they become compromised.

1.4 Feedback and Usage Data. Customer may, but is not required to, give Provider Feedback, in which case Customer gives Feedback "AS IS." Provider may use all Feedback freely without any restriction or obligation. In addition, Provider may collect and analyze Usage Data, and Provider may freely use Usage Data to maintain, improve, enhance, and promote Provider’s products and services without restriction or obligation. However, Provider may only disclose Usage Data to others if the Usage Data is aggregated and does not identify Customer or Users.

1.5 Customer Content. Provider may copy, display, modify, and use Customer Content only as needed to provide and maintain the Product and related offerings. Customer is responsible for the accuracy and content of Customer Content.

1.6 Machine Learning. Usage Data and Customer Content may be used to develop, train, or enhance artificial intelligence or machine learning models that are part of Provider’s products and services, including third-party components of the Product, and Customer authorizes Provider to process its Usage Data and Customer Content for such purposes. However, (a) Usage Data and Customer Content must be aggregated before they can be used for these purposes, and (b) Provider will use commercially reasonable efforts consistent with industry standard technology to

de-identify Usage Data and Customer Content before such use.

SECTION 2 ? RESTRICTIONS AND OBLIGATIONS

2.1 Restrictions on Customer. Except as expressly permitted by this Agreement, Customer will not (and will not allow anyone else to):

(i) reverse engineer, decompile, or attempt to discover any source code or underlying ideas or algorithms of the Product (except to the extent Applicable Laws prohibit this restriction);

(ii) provide, sell, transfer, sublicense, lend, distribute, rent, or otherwise allow others to access or use the Product;

(iii) remove any proprietary notices or labels;

(iv) copy, modify, or create derivative works of the Product;

(v) conduct security or vulnerability tests on, interfere with the operation of, cause performance degradation of, or circumvent access restrictions of the Product;

(vi) access accounts, information, data, or portions of the Product to which Customer does not have explicit authorization;

(vii) use the Product to develop a competing service or product;

(viii) use the Product with any High Risk Activities or with any activity prohibited by Applicable Laws;

(ix) use the Product to obtain unauthorized access to anyone else’s networks or equipment; or

(x) upload, submit, or otherwise make available to the Product any Customer Content to which Customer and Users do not have the proper rights.

Use of the Product must comply with all Documentation and Use Limitations.

2.2 Suspension. If Customer (a) has an outstanding, undisputed balance on its account for more than 30 days; (b) breaches Section 2.1 (Restrictions on Customer); or (c) uses the Product in violation of the Agreement or in a way that materially and negatively impacts the Product or others, then Provider may temporarily suspend Customer’s access to the Product with or without notice. However, Provider will try to inform Customer before suspending Customer’s account when practical. Provider will reinstate Customer’s access to the Product only if Customer resolves the underlying issue.

SECTION 3 ? PRIVACY AND SECURITY

3.1 Personal Data. Before submitting Personal Data governed by GDPR, Customer must enter into a data processing agreement with Provider. If the parties have a DPA, each party will comply with its obligations in the DPA, the terms of the DPA will control each party’s rights and obligations as to Personal Data, and the terms of the DPA will control in the event of any conflict with this Agreement.

3.2 Prohibited Data. Customer will not (and will not allow anyone else to) submit Prohibited Data to the Product unless authorized by the Cover Page or Order Form.

3.3 Security Incident Notification. Provider will notify Customer without undue delay (and in any event within 72 hours) after Provider becomes aware of a Security Incident affecting Customer Content. "Security Incident" means any unauthorized access to, or unauthorized acquisition, disclosure, use, or loss of, Customer Content.

SECTION 4 ? PAYMENT AND TAXES

4.1 Fees. Unless the Cover Page specifies a different currency, all Fees are in U.S. Dollars and are exclusive of taxes. Except for the prorated refund of prepaid Fees allowed with specific termination rights given in the Agreement, Fees are non-refundable.

4.2 Invoicing. Provider will send invoices for all Fees in advance according to the Payment Process specified on the Cover Page.

4.3 Payment Terms. Customer will pay each invoice within the number of days after the invoice date specified as the Payment Period on the Cover Page. If no Payment Period is specified, the default is thirty (30) days.

4.4 Late Payment. If Customer fails to pay any undisputed amount by the due date, Provider may charge interest on the overdue amount at the lesser of (a) one and one-half percent (1.5%) per month, or (b) the maximum rate permitted by Applicable Laws, from the due date until paid in full.

4.5 Taxes. Customer is responsible for all duties, taxes, and levies that apply to Fees, including sales, use, VAT, GST, or withholding, that Provider itemizes and includes in an invoice. However, Customer is not responsible for Provider’s income taxes.

4.6 Payment Dispute. If Customer has a good-faith disagreement about the Fees charged or invoiced, Customer must notify Provider about the dispute before payment is due, or within 30 days of an automatic payment, and must pay all undisputed amounts on time. The parties will work together to resolve the dispute within 15 days.

SECTION 5 ? TERM AND TERMINATION

5.1 Subscription Period. For each Cover Page, the Agreement will start on the Effective Date, continue through the initial Subscription Period, and automatically renew for additional Subscription Periods of the same length unless one party gives written notice of non-renewal to the other party at least the number of days specified as the Non-Renewal Notice Period before the end of the then-current Subscription Period.

5.2 Termination for Cause. Either party may terminate this Agreement or a Cover Page immediately:
(a) if the other party fails to cure a material breach following 30 days’ written notice specifying the breach; or
(b) upon written notice if the other party (i) materially breaches in a manner that cannot be cured; (ii) dissolves or stops conducting business without a successor; (iii) makes an assignment for the benefit of creditors; or (iv) becomes the debtor in insolvency, receivership, or bankruptcy proceedings that continue for more than 60 days.

5.3 Force Majeure. Either party may terminate an affected Cover Page upon written notice if a Force Majeure Event prevents the Product from materially operating for 30 or more consecutive days. Provider will pay to Customer a prorated refund of any prepaid Fees for the remainder of the Subscription Period.

5.4 Effect of Termination. Upon any expiration or termination:
(a) Customer will no longer have any right to use the Product.
(b) Upon Customer’s request, Provider will delete Customer Content within 60 days.
(c) Each Recipient will return or destroy Discloser’s Confidential Information in its possession or control.
(d) Provider will submit a final invoice for all outstanding Fees accrued before termination and Customer will pay the invoice according to Section 4.

5.5 Survival. The following sections will survive expiration or termination of this Agreement: Section 1.4 (Feedback and Usage Data), Section 1.6 (Machine Learning), Section 2.1 (Restrictions on Customer), Section 4 (Payment and Taxes) for Fees accrued or payable before expiration or termination, Section 5.4 (Effect of Termination), Section 5.5 (Survival), Section 6 (Representations and Warranties), Section 7 (Disclaimer of Warranties), Section 8 (Limitation of Liability), Section 9 (Indemnification), Section 10 (Confidentiality), Section 11 (Reservation of Rights), Section 12 (General Terms), and Section 13 (Definitions).

SECTION 6 ? REPRESENTATIONS AND WARRANTIES

6.1 Mutual. Each party represents and warrants to the other that:
(a) it has the legal power and authority to enter into this Agreement;
(b) it is duly organized, validly existing, and in good standing under the Applicable Laws of the jurisdiction of its origin;
(c) it will comply with all Applicable Laws in performing its obligations or exercising its rights in this Agreement; and
(d) it will comply with any Additional Warranties specified on the Cover Page.

6.2 From Customer. Customer represents and warrants that it, all Users, and anyone submitting Customer Content each have and will continue to have all rights necessary to submit or make available Customer Content to the Product.

6.3 From Provider. Provider represents and warrants to Customer that it will not materially reduce the general functionality of the Cloud Service during the Subscription Period.

6.4 Provider Warranty Remedy. If Provider breaches the warranty in Section 6.3, Customer must give Provider notice (with enough detail for Provider to understand or replicate the issue) within 45 days of discovering the issue. Within 45 days of receiving sufficient details, Provider will attempt to restore the general functionality of the Cloud Service. If Provider cannot resolve the issue, Customer may terminate the affected Cover Page and Provider will pay to Customer a prorated refund of prepaid Fees for the remainder of the Subscription Period.

SECTION 7 ? DISCLAIMER OF WARRANTIES

7.1 Provider makes no guarantees that the Product will always be safe, secure, or error-free, or that it will function without disruptions, delays, or imperfections. The warranties in Section 6 do not apply to any misuse or unauthorized modification of the Product, nor to any product or service provided by anyone other than Provider. Except for

the warranties in Section 6, Provider and Customer each disclaim all other warranties and conditions, whether express or implied, including the implied warranties and conditions of merchantability, fitness for a particular purpose, title, and non-infringement.

SECTION 8 ? LIMITATION OF LIABILITY

8.1 General Cap. Except as provided in Section 8.3, each party’s total cumulative liability for all claims arising out of or relating to this Agreement will not be more than the General Cap Amount specified on the Cover Page.

8.2 Damages Waiver. Except as provided in Section 8.3, under no circumstances will either party be liable to the other for lost profits or revenues (whether direct or indirect), or for consequential, special, indirect, exemplary, punitive, or incidental damages relating to this Agreement, even if the party is informed of the possibility of this type of damage in advance.

8.3 Exceptions. Section 8.1 does not apply to any Unlimited Claims specified on the Cover Page. Section 8.2 does not apply to a breach of Section 10 (Confidentiality). Nothing in this Agreement will limit, exclude, or restrict a party’s liability to the extent prohibited by Applicable Laws.

SECTION 9 ? INDEMNIFICATION

9.1 Protection by Provider. Provider will indemnify, defend, and hold harmless Customer from and against all Provider Covered Claims and all out-of-pocket damages, awards, settlements, costs, and expenses, including reasonable attorneys’ fees, that arise from the Provider Covered Claims.

9.2 Protection by Customer. Customer will indemnify, defend, and hold harmless Provider from and against all Customer Covered Claims and all out-of-pocket damages, awards, settlements, costs, and expenses, including reasonable attorneys’ fees, that arise from the Customer Covered Claims.

9.3 Procedure. The Indemnifying Party’s obligations are contingent upon the Protected Party: (a) promptly notifying the Indemnifying Party of each Covered Claim; (b) providing reasonable assistance at the Indemnifying Party’s expense; and (c) giving the Indemnifying Party sole control over the defense and settlement of each Covered Claim.

9.4 Exclusive Remedy. This Section 9, together with any termination rights, describes each Protected Party’s exclusive remedy and each Indemnifying Party’s entire liability for a Covered Claim.

SECTION 10 ? CONFIDENTIALITY

10.1 Non-Use and Non-Disclosure. Except as otherwise authorized in the Agreement or as needed to fulfill its obligations, Recipient will not (a) use Discloser’s Confidential Information; nor (b) disclose Discloser’s Confidential Information to anyone else. Recipient will protect Discloser’s Confidential Information using at least the same

protections Recipient uses for its own similar information but no less than a reasonable standard of care.

10.2 Exclusions. Confidential Information does not include information that (a) Recipient knew without any obligation of confidentiality before disclosure by Discloser; (b) is or becomes publicly known through no fault of Recipient; (c) Recipient receives without obligation of confidentiality from someone authorized to disclose it; or (d) Recipient independently developed without use of or reference to Discloser’s Confidential Information.

10.3 Required Disclosures. Recipient may disclose Discloser’s Confidential Information to the extent required by Applicable Laws, provided that Recipient gives Discloser reasonable advance notice and cooperates with Discloser’s efforts to obtain confidential treatment.

10.4 Permitted Disclosures. Recipient may disclose Discloser’s Confidential Information to employees, advisors, contractors, and representatives who each have a need to know, provided they are bound by confidentiality obligations at least as protective as those in this Section 10.

SECTION 11 ? RESERVATION OF RIGHTS

11.1 Except for the limited license to copy and use Software and Documentation in Section 1.1, Provider retains all right, title, and interest in and to the Product. Except for the limited rights in Sections 1.5 and 1.6, Customer retains all right, title, and interest in and to Customer Content.

SECTION 12 ? GENERAL TERMS

12.1 Entire Agreement. This Agreement is the only agreement between the parties about its subject and supersedes all prior or contemporaneous statements about its subject.

12.2 Modifications. Any waiver, modification, or change to the Agreement must be in writing and signed or electronically accepted by each party.

12.3 Governing Law. The Governing Law specified on the Cover Page will govern all interpretations and disputes about this Agreement, without regard to its conflict of laws provisions.

12.4 Notices. Any notice, request, or approval about the Agreement must be in writing and sent to the Notice Address specified on the Cover Page. Notices will be deemed given (a) upon confirmed delivery if by email, registered or certified mail, or personal delivery; or (b) two days after mailing if by overnight commercial delivery.

12.5 Assignment. Neither party may assign any rights or obligations under this Agreement without the prior written consent of the other party. However, either party may assign this Agreement upon notice if the assigning party undergoes a merger, change of control, reorganization, or sale of all or substantially all its equity, business, or assets to which this Agreement relates.

12.6 Force Majeure. Neither party will be liable for a delay or failure to perform its obligations of this Agreement if caused by a Force Majeure

Event. However, this section does not excuse Customer’s obligations to pay Fees.

12.7 Independent Contractors. The parties are independent contractors, not agents, partners, or joint venturers.

12.8 No Third-Party Beneficiary. There are no third-party beneficiaries of this Agreement.

12.9 Severability. If any term of this Agreement is determined to be invalid or unenforceable, the remaining terms will remain in full force and effect.

12.10 Signature. This Agreement may be signed in counterparts, including by electronic copies or acceptance mechanism. Each copy will be deemed an original.

SECTION 13 ? DEFINITIONS

13.1 "Affiliate" means an entity that, directly or indirectly, controls, is under the control of, or is under common control with a party, where control means having more than fifty percent (50%) of the voting stock or other ownership interest.

13.2 "Agreement" means the Cover Page between Provider and Customer as governed by these Standard Terms.

13.3 "Applicable Data Protection Laws" means the Applicable Laws that govern how the Cloud Service may process or use an individual’s personal information or personal data.

13.4 "Applicable Laws" means the laws, rules, regulations, court orders, and other binding requirements of a relevant government authority that apply to or govern Provider or Customer.

13.5 "Cloud Service" means the product described in the Cover Page.

13.6 "Confidential Information" means information in any form disclosed by or on behalf of a Discloser to a Recipient in connection with this Agreement that (a) the Discloser identifies as "confidential," "proprietary," or the like; or (b) should be reasonably understood as confidential or proprietary due to its nature and the circumstances of its disclosure.

13.7 "Cover Page" means a document that is signed or electronically accepted by the parties, incorporates these Standard Terms, and identifies Provider and Customer.

13.8 "Customer Content" means data, information, or materials submitted by or on behalf of Customer or Users to the Product but excludes Feedback.

13.9 "Discloser" means a party to this Agreement when the party is providing or disclosing Confidential Information to the other party.

13.10 "Documentation" means the usage manuals and instructional materials for the Cloud Service or Software that are made available by Provider.

13.11 "Feedback" means suggestions, feedback, or comments about the Product or related offerings.

13.12 "Fees" means the applicable amounts described in a Cover Page.

13.13 "Force Majeure Event" means an unforeseen event outside a party’s reasonable control where the affected party took reasonable measures to avoid or mitigate the impacts of the event, including natural disasters, war, pandemic, riot, act of terrorism, or public utility or internet failure.

13.14 "GDPR" means European Union Regulation 2016/679 as implemented by local law in the relevant European Union member nation.

13.15 "High Risk Activity" means any situation where the use or failure of the Product could be reasonably expected to lead to death, bodily injury, or environmental damage.

13.16 "Non-Renewal Notice Period" means the number of days before the end of the then-current Subscription Period by which a party must deliver written notice of non-renewal.

13.17 "Payment Period" means the number of days after the invoice date by which Customer must pay each invoice.

13.18 "Personal Data" will have the meaning(s) set forth in the Applicable Data Protection Laws for personal information, personal data, personally identifiable information, or other similar term.

13.19 "Product" means the Cloud Service, Software, and Documentation.

13.20 "Prohibited Data" means (a) protected health information regulated by HIPAA; (b) financial account numbers; (c) government ID numbers; (d) special categories of data as defined in the GDPR; and (e) other similar categories of sensitive information under Applicable Data Protection Laws.

13.21 "Recipient" means a party to this Agreement when the party receives Confidential Information from the other party.

13.22 "Security Incident" means any unauthorized access to, or unauthorized acquisition, disclosure, use, or loss of, Customer Content.

13.23 "Software" means the client-side software or applications made available by Provider for Customer to install, download, or execute as part of the Product.

13.24 "Standard Terms" means these Common Paper Cloud Service Agreement Standard Terms Version 2.0, as adapted and hosted in this document.

13.25 "Subscription Period" means the initial and any renewal period during which Customer may access the Cloud Service, as specified on the Cover Page.

13.26 "Usage Data" means data and information about the provision, use, and performance of the Product based on Customer’s or Users’ use.

13.27 "User" means any individual who uses the Product on Customer’s behalf or through Customer’s account.

13.28 "Variable" means a word or phrase that is highlighted and capitalized, such as Subscription Period or Governing Law.

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END OF STANDARD TERMS
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